THE INDIAN PENAL CODE, 1860 (IPC)

Act No. 45 of 1860 (Pre-July 1, 2024 Substantive Criminal Law)
Applicable to Pre-Transition Offences under Article 20(1) Non-Retroactivity Protection

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Section 34 IPC (Acts Done by Several Persons in Furtherance of Common Intention)

When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone. Requires prior meeting of minds and pre-arranged plan, though common intention may develop on the spot.

Section 120B IPC (Punishment of Criminal Conspiracy)

Whoever is a party to a criminal conspiracy to commit an offence punishable with death, imprisonment for life or rigorous imprisonment for a term of two years or upwards, shall be punished in the same manner as if he had abetted such offence. Section 120A defines agreement between two or more persons to do an illegal act.

Section 149 IPC (Every Member of Unlawful Assembly Guilty of Offence)

If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members of that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

Section 300 IPC (Murder) and Exceptions 1 to 5

Culpable homicide is murder if the act by which the death is caused is done with the intention of causing death, or with the intention of causing such bodily injury as the offender knows to be likely to cause death, or is sufficient in the ordinary course of nature to cause death.
Exception 1: Grave and sudden provocation deprived the offender of self-control.
Exception 2: Exceeding the right of private defence in good faith without premeditation.
Exception 3: Public servant exceeding powers in good faith believing it lawful.
Exception 4: Sudden fight in the heat of passion upon a sudden quarrel without premeditation.
Exception 5: When the person whose death is caused, being above 18 years, suffers death with consent.

Section 302 IPC (Punishment for Murder)

Whoever commits murder shall be punished with death, or imprisonment for life, and shall also be liable to fine. (Corresponds to Section 103 BNS 2023).

Section 304 IPC (Punishment for Culpable Homicide Not Amounting to Murder)

Part I: If done with intention of causing death or bodily injury likely to cause death — imprisonment for life or up to 10 years and fine. Part II: If done with knowledge that it is likely to cause death, but without any intention to cause death — imprisonment up to 10 years or fine or both.

Section 304B IPC (Dowry Death)

Where the death of a woman is caused by burns or bodily injury or occurs otherwise than under normal circumstances within seven years of marriage, and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or relatives in connection with dowry, such death is dowry death. Punishment: imprisonment not less than seven years up to life.

Section 307 IPC (Attempt to Murder)

Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment up to 10 years and fine; if hurt is caused, punishment may extend to imprisonment for life.

Section 375 & 376 IPC (Rape and Punishment for Rape)

Defines sexual assault against a woman without consent or against will. Section 376 mandates rigorous imprisonment not less than 10 years up to life imprisonment and fine. Section 376D governs gang rape with minimum 20 years up to natural life imprisonment.

Section 415 & 420 IPC (Cheating and Dishonestly Inducing Delivery of Property)

Section 415 defines cheating. Section 420 IPC penalizes aggravated cheating where the offender dishonestly induces the deceived person to deliver property or make/alter a valuable security. Punishment: imprisonment up to seven years and fine. (Corresponds to Section 318(2) BNS 2023).

Section 441, 442, 447 & 448 IPC (Criminal Trespass and House-Trespass)

Entering upon property in possession of another with intent to commit an offence, or intimidate, insult, or annoy. Section 447 penalizes criminal trespass with up to 3 months imprisonment or fine up to 500 rupees. Section 448 penalizes house-trespass with up to 1 year imprisonment or fine up to 1000 rupees.

Section 498A IPC (Husband or Relative of Husband Subjecting Woman to Cruelty)

Whoever, being the husband or relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine. Cruelty includes willful conduct likely to drive woman to commit suicide or harassment for unlawful property demands.

Section 503 & 506 IPC (Criminal Intimidation)

Threatening another with injury to person, reputation or property with intent to cause alarm. Section 506 punishes criminal intimidation with up to 2 years imprisonment, or up to 7 years if the threat is to cause death or grievous hurt.